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LINE 1

25-CIV-02094

MARY THERESA ELMORE, ET AL VS. ERIC MARTIN ERNSTER, ET AL

MARY THERESA ELMORE
ERIC MARTIN ERNSTER

NEWTON OLDFATHER

PLAINTIFFS' MOTION FOR TRIAL PREFERENCE PURSUANT TO CCCP SECTION 36

TENTATIVE RULING:

The Court notes that Plaintiffs' Motion for Trial Preference Pursuant to California Code of Civil Procedure Section 36 (the "Motion") filed on January 12, 2026, stated that the above-entitled matter was set in Department 19. However, effective May 11, 2026, by order of the Presiding Judge pursuant to San Mateo County Superior Court Local Rule 3.200(a), this matter was reassigned for all purposes, including the instant hearing, to the Honorable David A. Silberman, Department 11, located at 800 North Humboldt Street, San Mateo, CA 94401, Courtroom G. Cal. Rules of Court, Rule 3.1110 (the Notice "must specify" the location of the hearing). Plaintiff arguably should have re-noticed the motion, but the error is understandable, harmless and waived.

The Motion is GRANTED. The parties are Ordered to appear (regardless of whether the tentative is contested) to discuss, assuming the Court adopts its tentative, a date for trial and the parties' completion of alternative dispute resolution as well as whether the plaintiffs will be seeking to have a guardian ad litem appointed for Mary Theresa Elmore. The Court is likely to set trial to begin October 27, with a pretrial conference on October 5 and a mandatory settlement conference on September 18, 2026 (with the last date subject to change based on the convenience of the assigned settlement judge).

Per allegations, David Wayne Elmore died at Sutter Mills-Peninsula Medical Center in Burlingame on August 5, 2024, because even though he had been prescribed 0.5 mg of intravenous hydromorphone per hour, he was given ten times as much, for nine hours. Plaintiffs are Mr. Elmore's estate, as well as his spouse (Plaintiff Mary Theresa Elmore, herein, "Plaintiff") and children, who were with him in the hospital and watched him pass away as Defendants allegedly ignored their concerns.

Through the Motion, Plaintiffs seek a trial-setting preference. The governing statute provides that:

A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings:

1. The party has a substantial interest in the action as a whole.
2. The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.

Code Civ. Proc. § 36 (a).

Further, “An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party.” Code Civ. Proc. § 36.5. *Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 535 (holding that it was error to deny preference where a party has legitimate concerns about significantly deteriorating health).

Moreover, “The express legislative mandate for trial preference is a substantive public policy concern which” is so strong that it “supersedes such considerations” as inconvenience to the trial Court, which also “has no power to balance the differing interests of opposing litigants in applying the provision.” *Swaithes v. Superior Court* (1989) 212 Cal.App.3d 1082, 1085-86 (citation omitted).

The governing statute further provides that: Notwithstanding any other provision of law, the court may in its discretion grant a motion for preference that is supported by a showing that satisfies the court that the interests of justice will be served by granting this preference. Code Civ. Proc., § 36, subd. (e).

Plaintiff is over 70 years old. Code Civ. Proc., § 36 (a). Specifically, Plaintiff is currently 82 years old. Elmore Decl. ¶ 2.

Plaintiff is the late Mr. Elmore’s surviving spouse, who witnessed Defendants’ admitted error (Oldfather Decl., ¶ 7) and her late husband’s resulting death. Elmore Decl. ¶ 3. As such, she has a substantial interest in the instant action as a whole. Code Civ. Proc., § 36(a).

Plaintiff suffers from a degenerative disease and other health conditions that risk prejudicing her interests in litigating the instant action. *Id.* Plaintiff’s daughter, Tracy Elmore, has been Plaintiff’s primary caregiver since Mr. Elmore’s death, and has witnessed her mother’s emotional distress and deterioration since then. Elmore Decl. ¶¶ 3, 6. Plaintiff was diagnosed with Alzheimer’s disease in 2025 (*id.* ¶ 4), and her caregiving daughter declares her concerns “that additional delay will make it more difficult for her to articulately explain and present her damages claim to show the jury the effect that that loss of her husband and my father has had on her.” *Id.* ¶ 7. Plaintiffs’ counsel also declares his “concern[] that Plaintiff Mary Theresa Elmore’s Alzheimer’s will deteriorate her cognitive abilities to the point that she will have difficulty testifying regarding the incident and her damages.” Oldfather Decl. ¶ 8; Code Civ. Proc. § 36.5.

The evidence indicates that Plaintiff’s medical conditions increase the likelihood that she will pass away before trial, and further, that her ability to present her testimony at trial and otherwise participate in litigation, and to enjoy any compensation in her lifetime, will be prejudiced without a trial preference. Defendants attempt to characterize the declared risks as improper speculation. However, it is clear to the Court from the language of the statute and Plaintiffs’ evidence that Plaintiff’s health “is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” Moreover, the Court of Appeal acknowledges the uncertainty and indeterminacy captured in the term, “risk” *Fox*, 21 Cal.App.5th at 535-36), and the clear intent of the Legislature is to safeguard litigants who qualify under subdivision (a) of section 36 against the acknowledged risk that death or incapacity might deprive them of the opportunity to have their case effectively tried and to obtain the appropriate recovery. *Swaithes*, 212 Cal.App.3d at 1085 (citation omitted).

Defendants also argue at length that granting the Motion would unfairly prejudice their ability to prepare for trial. However, the Court of Appeal expressly forbids the Court from considering such argument. *Swaithes*, 212 Cal.App.3d at 1085-86 (the Court “has no power to balance the differing interests of opposing litigants in applying the provision.”). In advancing this argument, Defendants cite the Court of

Appeal's recognition that "there may be 'strong countervailing considerations'" arising from their right to prepare for trial (Opp., 8:11)—but the language is cited out of context:

Thus, relevant precedent upholds the absolute command of section 36(a) in light of its plain meaning, despite recognition that in certain instances there are strong countervailing considerations—deriving from principles of efficient trial court management; from fairness and due process to other litigants; and from divergent public policy or statutory contexts in which the section 36(a) mandate may be difficult, impractical, or impossible to realize. In short, we approach this case against a background of relevant precedent which holds section 36(a) is a comprehensive and final legislative judgment on the issue, which must prevail whenever the section 36(a) right is juxtaposed to another countervailing argument, based on whatever legitimate or seemingly compelling public interest. *Miller v. Sup. Ct.* (1990) 221 Cal.App.3d 1200, 1206.

While, due process concerns may exist with trial preferences in the abstract, this case is already more than 15 months old (and, while not necessary for the decision, there is a strong implication that defendants were aware that litigation was likely even before this case was filed), Defendants became aware of the risk that a preference might be granted almost six months ago when this motion was filed and had that last six months available to it (in addition to the prior nine months) to conduct discovery and prepare the theoretical summary judgment motion it references in its opposition. Defendants also do not dispute that substantial discovery has already occurred. Put another way, Defendants' due process argument is largely generalized and unpersuasive.

In addition, the Court believes the interests of justice warrant trial preference here, to mitigate the risk that Plaintiff's death or diminishing capacity might deprive/harm her (of the) opportunity to testify to the jury as to the effects of Defendants' admitted error. (Code Civ. Proc., § 36, subd. (e).)

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, plaintiff's counsel shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM

LINE 2

25-CIV-02450

VERONICA NAVARRO VS. STEPHEN PRESTON MEALIFFE, ET AL

VERONICA NAVARRO

STEPHEN R. JAFFE

STEPHEN PRESTON MEALIFFE

DEFENDANT ZOOX, INC.'S MOTION TO ENFORCE SETTLEMENT

TENTATIVE RULING:

The Motion to Enforce Settlement by Defendant Zook, Inc. ("Defendant") is DENIED WITHOUT PREJUDICE.

Plaintiff Veronica Navarro ("Plaintiff") brought an action against Defendant, her former employer. In May 2025, the parties signed a Confidential Settlement and General Release Agreement. October 17, 2025 Compendium of Evidence ("Compendium") Exhs. 18 and 19. This settlement agreement includes a procedure for remediation of a Seagate hard drive that was owned by Plaintiff. *Id.* ¶ 2.1.2. Upon completion of the remediation, the parties agreed they would sign a Mutual General Release. *Id.* ¶ 2.2, and Exh. B.

Defendant brings this Motion seeking to enforce the settlement agreement under Code of Civil Procedure section 664.6.

On a motion under Code of Civil Procedure section 664.6, the court must determine whether the parties entered into a valid and binding settlement. *Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182. "A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms." *Id.* The court may consider the parties' declarations and other evidence in deciding what terms the parties agreed to. *Id.* However, while the court may receive evidence, determine disputed facts and enter the terms of a settlement agreement as a judgment, nothing in section 664.6 authorizes a judge to create the material terms of a settlement as opposed to deciding what terms the parties themselves agreed. *Machado v. Myers* (2019) 39 Cal.App.5th 779, 790.

Despite Plaintiff and Zook signing the Confidential Settlement and General Release Agreement, Plaintiff argues that no settlement agreement ever existed and that she only indicated her agreement to participate in the remediation procedure set forth in Section 2.1.2. However, Plaintiff's interpretation is contradicted by the plain language of the Confidential Settlement and General Release Agreement ("Agreement"). The Agreement states that the parties desire to resolve any and all disputes arising from Plaintiff's employment. Compendium Exhs. 18 and 19. The agreement also includes a release of claims. *Id.* The agreement states that it shall become effective on the eighth calendar day after the last party executes the agreement if Plaintiff does not timely revoke the agreement as set forth in section 18.7, which provides for revocation from seven days following execution of the agreement. *Id.* Plaintiff executed the agreement on May 22, 2025. *Id.* Ex. 18. Plaintiff has not shown that she revoked the agreement within seven days of executing it.

Furthermore, Plaintiff is clearly wrong—the remediation procedure was not a condition precedent to the settlement agreement becoming effective. Civil Code, § 1436. Instead, the agreement provides that upon completion of the remediation, the parties agreed to sign and deliver the Mutual General Release and
